

January 23, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14307

EXPIRATION DATE: May 31, 2006

1. GRANTEE: Gayson SDI
Barberton, OH
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the transportation in commerce of certain plastic drums that meet the UN standard performance requirements but do not have the proper specification marking. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.3 in that each plastic drum meets the UN performance standard but is not marked with the specification marking; and § 172.301(c) in that each drum is not required to be marked with the special permit number.
5. BASIS: This emergency special permit is based on the application of Gayson SDI, dated January 17, 2006 submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss..

January 23, 20066. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organic peroxide type D, solid	5.2	UN3106	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are approximately 500 UN1H2 plastic drums authorized for Organic peroxide Type D, solid by the HMR, except that each drum has been manufactured and certified but not marked with the following:

UN1H2/Y22/S/05/CN/4400 090

b. The drums must be palletized no more than 9 drums per layer, two layers high, a maximum of 18 drums per pallet. Pallets must be securely banded or shrink-wrapped for transportation.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. The marking requirement specified for each package in § 172.301(c) is waived. In lieu of marking each package, each skid must be marked "DOT-SP 14307" on one side in letters of at least 2 inches in height on a contrasting background.

January 23, 2006

- d. This special permit only authorizes the one-way transportation of the drums identified in paragraph 7 to their final destination. The drums must be marked with the appropriate specification markings prior to reuse in hazardous materials service.
- e. Each shipping paper must be marked with "DOT-SP 14307" in accordance with § 172.203(a).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term

January 23, 2006

'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.

A handwritten signature in blue ink, appearing to read "Robert A. McGuire".

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM